



CHAPTER iv.

An Act to confirm a Provisional Order under the Private A.D. 1915.
Legislation Procedure (Scotland) Act 1899 relating to the
Caledonian Railway. [19th May 1915.]

WHEREAS His Majesty's Secretary for Scotland has made
the Provisional Order set forth in the schedule hereunto
annexed under the provisions of the Private Legislation 62 & 63 Vict.
Procedure (Scotland) Act 1899 and it is requisite that the said c. 47.
Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present Parliament
assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto Confirmation
annexed shall be and the same is hereby confirmed. of Order in
schedule.

2. This Act may be cited as the Caledonian Railway Order Short title.
Confirmation Act 1915.

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SCHEDULE.

Provisional Order to confer further powers on the Caledonian Railway Company in relation to their undertaking to confirm certain agreements entered into by the Company to stop up certain level crossings to extend the periods for the completion of certain works and for the purchase of land and to revive the powers for the purchase of lands for and for the construction of other works to empower the Cathcart District Railway Company to hold and dispose of superfluous lands and for other purposes.

WHEREAS it is expedient that further powers should be conferred upon the Caledonian Railway Company (hereinafter referred to as "the Company") in relation to their undertaking as provided in this Order :

And whereas it is expedient that the agreements set forth in the schedules to this Order should be confirmed :

And whereas it is expedient that the time for the completion of the railways and works and for the purchase of the lands mentioned in this Order should be extended as therein provided :

And whereas it is expedient that the powers granted by the Caledonian Railway Order 1907 for the construction of the Railway (Work No. 1) by that Order authorised and for the purchase of the lands referred to in this Order should be revived and that the periods limited for the exercise of such powers should be extended :

And whereas it is expedient to empower the Cathcart District Railway Company to hold and dispose of certain lands acquired by that company for the purposes of their undertaking which may not be required for those purposes :

And whereas since the passing of the Lands Clauses Consolidation Acts Amendment Act 1860 the Company have from time to time purchased lands in consideration of the payment of perpetual feu duties and ground annuals as mentioned in section 5 of that Act the capitalised value of which computed at twenty years' purchase thereof amounts in the aggregate to five hundred and ten thousand six hundred and fifteen pounds or thereabouts and it is expedient that in

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respect thereof there should be created and that the Company should be empowered to issue debenture stock to make good the reduction of borrowing powers in that section referred to: A.D. 1915.

And whereas it is expedient that the other powers contained in this Order should be conferred on the Company:

And whereas the purposes aforesaid cannot be effected without an order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited for all purposes as the Caledonian Railway Order 1915. Short title.

2. The Lands Clauses Acts and Part II. (relating to extension of time) of the Railways Clauses Act 1863 and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by any subsequent Act are (except where and as expressly varied by this Order) incorporated with this Order. Incorporation of Acts.

3. In this Order unless there be something in the subject or context repugnant to such construction— Interpretation.

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings and the expression “the Company” means the Caledonian Railway Company.

In the provisions of the Acts wholly or partially incorporated with this Order the following expressions have for the purposes of this Order the meanings hereinafter attributed to them (that is to say):—

The expressions “the company” “the undertakers” and “the promoters of the undertaking” mean the Company; The expression “the railway and works” in Part II. of the Railways Clauses Act 1863 incorporated with this Order means the railways and other works the time for the purchase of lands for or for the completion of which is hereby extended.

4.—(1) The agreement between George Francis Dalziel and Roger Alvin Poore joint commissioners for the trustees of the deceased William Alexander Louis Stephen Duke of Hamilton Confirmation of agreement with Hamilton

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A.D. 1915. trustees as to Merryton level crossing. Brandon and Chatelherault on the one part and the Company on the other part set forth in the First Schedule to this Order is hereby sanctioned and confirmed and made binding on the trustees and the Company respectively.

(2) Subject to the provisions of the said agreement the obligation imposed on the Company by section 14 (Stopping up of Merryton level crossing) of the Caledonian Railway Order 1910 of forming and maintaining the road of access referred to in that section before the said level crossing shall be stopped up or discontinued shall be repealed and cease to be binding on the Company.

Confirmation of agreement with corporation of Dundee. 5. The agreement between the Company of the first part and the lord provost magistrates and councillors of the city and royal burgh of Dundee of the second part set forth in the Second Schedule to this Order is hereby sanctioned and confirmed and made binding on the parties thereto and shall be carried into effect according to the tenor thereof.

Stopping-up of White-gates level crossing and confirmation of agreement with War Office. 6.—(1) The Company and the North British Railway Company may stop up and discontinue the private level crossing over the Dundee and Arbroath Joint Railway of the said two companies in the parish of Monifieth in the county of Forfar known as the Whitegates level crossing and the approaches thereto and thereupon all rights of way or servitudes in over or across the same shall be extinguished.

(2) The agreement between His Majesty's Principal Secretary of State for the War Department of the first part and the Company and the North British Railway Company of the second part set forth in the Third Schedule to this Order is hereby sanctioned and confirmed and made binding on the parties thereto.

Stopping up of Float level crossing and confirmation of agreement with Lanark County Council. 7.—(1) The agreement between the Company of the first part and the county council of the county of Lanark of the second part set forth in the Fourth Schedule to this Order is hereby sanctioned and confirmed and made binding on the parties thereto and shall be carried into effect according to the tenor thereof.

(2) So soon as the road and bridge referred to in article first of the said agreement have been opened for public use and the portions of highway therein also referred to have been shut up and closed the Company may stop up and discontinue

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the level crossing over the Company's main line of railway in the parish of Pettinain in the county of Lanark known as Float level crossing and the approaches thereto and thereupon all rights of way or servitudes in over or across the same shall be extinguished. A.D. 1915.

8.—(1) Subject to the provisions of the agreement referred to in subsection (2) of this section the Company may stop up and discontinue the level crossing over the Company's Dubton and Montrose Branch Railway in the parish and Royal burgh of Montrose in the county of Forfar known as Rosehill level crossing and the approaches thereto and thereupon all rights of way or servitudes in over or across the same shall be extinguished. Stopping up of Rosehill level crossing and confirmation of agreement with town council of Montrose.

(2) The agreement between the Company of the first part and the provost magistrates and councillors of the royal burgh of Montrose of the second part set forth in the Fifth Schedule to this Order is hereby sanctioned and confirmed and made binding on the parties thereto and may and shall be carried into effect according to the tenor thereof.

9. The Company shall make full compensation to all parties interested in respect of any private rights of way or servitudes extinguished by virtue of the two immediately preceding sections of this Order and such compensation shall in case of difference be settled in manner provided by the Lands Clauses Acts with reference to the purchase and taking of land otherwise than by agreement. Compensation in respect of private rights of way.

10. The period limited by the Caledonian Railway (General Powers) Act 1899 for the completion of Railway No. 3 authorised by that Act as now extended by the Caledonian Railway Order 1913 is hereby further extended for three years from the expiration of the said period that is until the ninth day of August one thousand nine hundred and nineteen and the sections of the above Act which relate to the period for the completion of the said railway and to the penalties exigible in the event of the same not being completed within the period thereby limited for the completion thereof shall be read and construed as if the period for such completion did not expire until the expiration of the extended period hereby limited. Extending period for completion of Railway No. 3 under Act of 1899.

11.—(1) The powers granted by the Glasgow and Renfrew District Railway Act 1897 as now extended by the Caledonian Railway Order 1913 for the compulsory purchase of the several Extension of time for purchase of land for and for

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completion
of Glasgow
and Renfrew
District
Railway.

lands referred to in the Second Schedule to the Glasgow and South Western Railway Order 1906 are hereby further extended and shall continue in force and may subject to the provisions of section 24 (For protection of trustees of Clyde Navigation) of the Glasgow and South Western Railway Order 1911 be exercised by the Company and the Glasgow and South Western Railway Company for the further period of two years from the sixth day of August one thousand nine hundred and sixteen and on the expiration of that period those powers shall cease but nothing in this Order shall relieve the said companies from the obligation or restrictions imposed by section 30 (Restrictions on displacing persons of labouring class) of the said Act of 1897.

(2) The period limited by the Glasgow and Renfrew District Railway Act 1897 as now extended by the Caledonian Railway Order 1913 for the completion of Railway No. 5 authorised by the said Act of 1897 is hereby further extended for a period of three years from the sixth day of August one thousand nine hundred and sixteen and sections 12 and 13 of the Glasgow and South Western Railway (Darvel and Lanarkshire Railway Transfer) Order 1904 shall so far as the same relate to or affect the said railway be read and construed accordingly. If the said railway is not completed within the said period of three years then on the expiration of that period the powers for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

(3) Nothing in this section shall prejudice alter or affect (a) the provisions of section 19 of the said Order of 1913 relating to the formation of the road or street referred to in that section (b) the provisions of the Clyde Navigation Order 1914 relating to Railway No. 6 as therein defined and the railway and bridge and other works thereby authorised to be constructed by the trustees of the Clyde Navigation.

Extending
period for
completion
of certain
works under
Act of 1900.

12. The period within which the Company are required by section 26 (For the protection of the corporation of Glasgow) of the Caledonian Railway Act 1900 to carry out the street improvements and works referred to in that section as now extended by the Caledonian Railway Order 1913 is hereby further extended for three years from the expiration of the said period that is until the sixth day of August one thousand nine hundred and nineteen.

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13. The powers for the compulsory purchase and taking of lands granted by the Caledonian Railway Order 1910 in respect of the bridge lengthening (Work No. 1) authorised by that Order as extended by the Caledonian Railway Order 1913 are hereby further extended and may be exercised by the Company at any time within but shall cease after the expiration of two years from the twenty-sixth day of July one thousand nine hundred and fifteen and the period limited by the said Order of 1910 for the completion of the said bridge lengthening is hereby extended for three years from the expiration thereof that is until the twenty-sixth day of July one thousand nine hundred and eighteen.

A.D. 1915.
 Extension of time for purchase of lands for and for completion of Work No. 1 under Order of 1910.

14.—(1) The powers granted by the Caledonian Railway Order 1910 as extended by the Caledonian Railway Order 1913 for the compulsory purchase and taking of the lands in the parish of Govan, and city and royal burgh of Glasgow the parish of Rutherglen the royal burgh of Rutherglen the parish of Old Monkland the burgh of Coatbridge and the parish of Hamilton all in the county of Lanark described in section 5 of the first-named Order and therein numbered respectively (1) (2) (3) (4) (6) and (7) are hereby extended and may be exercised at any time within but shall cease after the expiration of two years from the twenty-sixth day of July one thousand nine hundred and fifteen.

Extension of time for purchase of certain lands under Orders of 1910 and 1913.

(2) The powers granted by the Caledonian Railway Order 1913 for the compulsory purchase and taking of the lands in the parish of Kirkpatrick Juxta in the county of Dumfries described and numbered (1) in section 5 of the said Order of 1913 are hereby extended and may be exercised by the Company within but shall cease after the expiration of two years from the fourth day of July one thousand nine hundred and sixteen.

15. The powers granted to the Company for the construction and completion of the Railway (Work No. 1) authorised by the Caledonian Railway Order 1907 are hereby revived and extended and may be exercised by the Company in accordance with the provisions of the said Order at any time within but shall cease after the expiration of three years from the passing of the Act confirming this Order and the sections of the said Order of 1907 which relate to the period for the completion of the said railway and to the penalties exigible in the event of the same not being completed within the period thereby limited for

Revival of powers for completion of railway (Work No.1) under Order of 1907.

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A.D. 1915. — the completion thereof shall be read and construed as if the period for such completion referred to in those sections did not expire until the expiration of the extended period hereby limited.

Revival of powers for purchase of lands under Order of 1907.

16. The powers granted to the Company by the Caledonian Railway Order 1907 for the compulsory purchase and taking of the lands in the parishes of Bothwell Crawford and Wandel and Lamington in the county of Lanark the parish of Currie in the county of Edinburgh the parishes of Stirling and St. Ninians and royal burgh of Stirling in the county of Stirling and the parish of Comrie in the county of Perth described in section 6 of the said Order of 1907 and therein numbered respectively (2) (3) (4) (9) (11) and (13) are hereby revived and extended and may be exercised by the Company at any time within but shall cease after the expiration of two years from the passing of the Act confirming this Order.

Power to Cathcart District Railway Company to retain lease &c. superfluous lands.

17. Whereas lands have from time to time been purchased or acquired by the Cathcart District Railway Company (in this section called "the Cathcart Company") adjoining or near to railways or stations belonging to that company which may not be immediately required for the purposes of the undertaking of the Cathcart Company and it is expedient that further powers should be conferred upon that company with respect to such lands Therefore notwithstanding anything contained in the Lands Clauses Consolidation (Scotland) Act 1845 or in the Cathcart District Railway (Superfluous Lands) Order 1906 or in any other Act or Order relating to the Cathcart Company with which the Act first mentioned is incorporated the Cathcart Company shall not be required to sell or dispose of the lands referred to in section 2 of the said Order of 1906 or of any other lands so purchased or acquired by them as aforesaid which may not be required for the purposes of their undertaking but may retain hold or use or may lease or otherwise dispose of the same as they may think fit.

Debenture stock in respect of capitalised value of feu duties.

18. As from and after the passing of the Act confirming this Order there shall be created by virtue of this Order and without any further or other authority debenture stock of the Company to the amount of five hundred and ten thousand six hundred and fifteen pounds being the capitalised value of the perpetual feu duties and ground annuals in consideration of which the Company have from time to time purchased lands

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and the Company may issue the said stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest on such debenture stock shall rank *pari passu* with the interest of all mortgages at any time after the passing of the Act confirming this Order granted by the Company and shall have priority over all principal moneys secured by such mortgages Provided that all moneys raised by the Company by the issue of debenture stock under this section shall be applied only to purposes to which capital is properly applicable.

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19. The Company may apply towards the purposes of this Order to which capital is properly applicable any capital or funds belonging to or authorised to be raised by them which may not be required for the purposes for which the same were authorised to be raised or directed to be applied.

Application
of funds of
Company.

20. Notwithstanding anything contained in this Order the Company shall not under the powers of this Order raise or borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Restriction
on raising of
capital.

21. The Company shall not out of any money which they are by this Order authorised to raise pay or deposit any sum which by any standing order of either House of Parliament or by any general order for the regulation of proceedings under the Private Legislation Procedure (Scotland) Act 1899 now or hereafter in force may be required to be deposited in respect of any application to Parliament or to the Secretary for Scotland for the purpose of obtaining an Act or Order authorising the Company to construct any railway or to execute any other work or undertaking.

Deposits not
to be paid
out of
capital.

22. Nothing in this Order shall be deemed to impose upon the Postmaster-General the obligation of transmitting under the provisions of the Telegraph Act 1868 or any agreement between the Postmaster-General and the Company made in pursuance thereof any larger number of telegraphic messages of the Company free of charge than he would have been bound to transmit had this Order not become law.

For pro-
tection of
Postmaster-
General.

23. Except as expressly enacted herein or provided in the agreement set forth in the Third Schedule hereto nothing in this Order shall take away lessen prejudice alter or affect any of

Saving
rights of
War Depart-
ment.

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A.D. 1915. — the rights privileges exemptions or powers vested in enjoyed or exercised by His Majesty's Principal Secretary of State for the War Department without the previous consent of the said Secretary of State certified in writing which consent the said Secretary of State is hereby authorised to give subject to such special or other conditions as he shall see fit to impose.

Provision as
to general
Railway
Acts.

24. Nothing in this Order contained shall exempt any company upon whom powers are conferred by this Order or their respective railways from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the passing of the Act confirming this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the said companies respectively.

Costs of
Order.

25. All costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Company.

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SCHEDULES referred to in the foregoing Order.

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THE FIRST SCHEDULE.

MINUTE OF AGREEMENT between GEORGE FRANCIS DALZIEL writer to the signet Edinburgh and ROGER ALVIN POORE Distinguished Service Order of number eight Old Jewry London as joint commissioners for the trustees of the deceased Most Noble WILLIAM ALEXANDER LOUIS STEPHEN DUKE OF HAMILTON BRANDON AND CHATELHERAULT Knight of the Thistle hereinafter referred to as "the trustees" on the one part and the CALEDONIAN RAILWAY COMPANY incorporated by the Caledonian Railway Act eighteen hundred and forty-five hereinafter referred to as "the Company" on the other part.

CONSIDERING that by section 14 of the Caledonian Railway Order 1910 as confirmed by the Caledonian Railway Order Confirmation Act 1910 it is provided that the Company may stop up and discontinue the private level crossing over their Lesmahagow branch railway in the parish of Hamilton in the county of Lanark known as Merryton level crossing and the approaches thereto and that thereupon all rights of way or servitudes in over or across the same should be extinguished but that before the said level crossing should be stopped up or discontinued the Company should in substitution therefor form and maintain in all time coming a road of access with suitable fences along the north-east side of the said branch railway from the public road to the lands to which the said crossing then formed and still forms the access and it also provided that such substituted road should be a properly macadamised road at least fifteen feet wide and should be formed on lands belonging to the Company or to be acquired by them for that purpose And considering further that the parties hereto have arranged for the provisions of the foresaid section 14 being implemented in the manner after mentioned Therefore the trustees and the Company have agreed and hereby agree as follows (viz.):—

First The trustees shall forthwith proceed to form over ground belonging to them and on the line shown on the plan annexed and subscribed as relative hereto a road of access with a suitable fence along the north-east side thereof (including an entrance gate from the public road) all to their own satisfaction extending in a westerly direction from the public road along the north-east side of the said Lesmahagow branch railway to the lands to which the foresaid

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A.D. 1915. — private level crossing known as Merryton level crossing indicated on the foresaid plan and referred to in section 14 of the said Caledonian Railway Order 1910 at present forms an access. The said entrance gate shall at all times be maintained by the trustees in good order and repair at their own expense notwithstanding that it will form part of the fence along the public road which fence the Company are otherwise bound to maintain.

Second In consideration of the trustees undertaking to form the said road and relative fence and entrance gate as aforesaid the Company shall be bound as they hereby bind and oblige themselves immediately on the completion of the said road of access and entrance gate to make payment to the trustees of the sum of fifty pounds sterling being the estimated cost of the formation or erection of the said road of access fence and entrance gate and of the future maintenance thereof so far as the same may require or be intended to be maintained.

Third On the completion of the said road of access fence and entrance gate and payment to the trustees of the said sum of fifty pounds the Company shall be entitled to stop up and discontinue as from and after the date of such payment the said Merryton level crossing and thereupon all rights of way or servitudes in over or across the same belonging to the trustees or their successors and tenants or others deriving right from them shall be deemed and taken to be extinguished and discharged and it is hereby agreed and provided that on the stopping up of the said level crossing taking place after the formation of the said new road of access fence and entrance gate and payment therefor to the trustees as aforesaid the whole provisions of the said section 14 of the said Order obliging the Company to form and maintain a new road of access in lieu of the said private level crossing shall be deemed to have been duly implemented by the Company and the trustees hereby undertake to free and relieve the Company of all claims that may be made by any person alleging rights in the said level crossing in consequence of the same being discontinued or on account of the foresaid substitute road of access being made otherwise than as provided in the foresaid section 14 of the said Order. And the trustees hereby agree to the insertion in any Provisional Order which the Company may hereafter promote of a clause relieving the Company of the obligations contained in the foresaid section 14 with reference to the formation and maintenance of the substitute road of access. Nothing herein contained shall be deemed to give the Company any right or interest in or to the said new road of access saving always their interest in the proper maintenance of the said entrance gate. And the parties hereto consent to the registration hereof for preservation and execution.

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This agreement is made subject to such alterations as Parliament or the Secretary for Scotland may think fit to make therein but in the event of Parliament or the Secretary for Scotland making any alteration therein which in the opinion of the Right Honourable Baron Parmoor is material it shall be competent to either party to withdraw from the same. A.D. 1915.

In witness whereof these presents written on this and the two preceding pages by John McDonald clerk to Messieurs Tods Murray and Jamieson writers to the signet Edinburgh are executed in duplicate as follows (videlicet) They are subscribed by the said Roger Alvin Poore at Hamilton on the third day of July in the year nineteen hundred and fourteen before these witnesses Thomas Douglas Wallace factor and Matthew Kerr sub-factor both on the Hamilton estates they are subscribed by the said George Francis Dalziel at Edinburgh on the fourth day of the said month of July and year last mentioned before these witnesses Alexander Dunbar and George John Henry both clerks to the said Tods Murray and Jamieson they are sealed with the common seal of the said Caledonian Railway Company and are subscribed for and on behalf of the said Company by Sir Charles Bine Renshaw Baronet and William James Chrystal two of the directors and John Blackburn the secretary of said Company all at Glasgow on the twenty-seventh day of the said month of July and year last mentioned before these witnesses John Richmond and George Mitchell both clerks to the said Company This testing clause from and after the words "In witness whereof" being written by William Andrew Hawkins also clerk to the said Tods Murray and Jamieson.

GEORGE J. HENRY Witness.
ALEXANDER DUNBAR Witness.

G. F. DALZIEL.

T. DOUGLAS WALLACE Witness.
MATT. KERR Witness.

R. A. POORE.

JNO. RICHMOND Witness.
GEORGE MITCHELL Witness.



C. BINE RENSHAW Dr.
WM. J. CHRYSTAL Dr.
J. BLACKBURN Secy.

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THE SECOND SCHEDULE.

AGREEMENT between the CALEDONIAN RAILWAY COMPANY (hereinafter called "the Railway Company") of the first part and the LORD PROVOST MAGISTRATES AND COUNCILLORS OF THE CITY AND ROYAL BURGH OF DUNDEE (hereinafter called "the Town Council") of the second part.

Witnesseth :—

Whereas by sub-article (one A) of Article First of an agreement between the parties (hereinafter referred to as "the agreement of nineteen hundred and one") dated eleventh September and third October nineteen hundred and one scheduled to and confirmed by the Caledonian Railway Act 1902 the Town Council agreed to sell to the Railway Company and the Railway Company agreed to purchase from the Town Council a strip of ground extending to three acres and eleven poles lying on the south side of and adjoining the agreed on boundary of the Railway Company's railway as said boundary is defined by and particularly described in Article First of the said agreement And whereas the parties have agreed to modify as hereinafter provided the provisions of said agreement so far as not already implemented Therefore it is agreed as follows (videlicet):—

First The Town Council hereby free and relieve the Railway Company of (first) the obligation contained in Article First of the agreement of nineteen hundred and one to purchase the strip of ground extending to three acres eleven poles referred to in subsection one (a) of the First Article thereof except to the extent hereinafter provided and (second) all liability for all claims of whatever nature competent under the agreement of nineteen hundred and one or in connection with or arising from the occupation by the Railway Company of any part of the said strip of ground The wire fence already erected by the Railway Company to inclose a portion of the said strip of ground shall be allowed to remain in its present position but only during the pleasure of the Town Council and the Railway Company shall be bound to remove it and re-erect it on their boundary when called upon by the Town Council to do so And on the other hand the Railway Company free and relieve the Town Council of the obligation to purchase the ground between the points marked with the letters D D on Plan No. III all as referred to in subsection one (a) of the first article of the agreement of nineteen hundred and one and of all claims of whatever nature competent under the agreement of nineteen hundred and one.

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Second The Railway Company shall convey to the Town Council without payment and free from all feuduties and casualties (first) the area of ground in Drummond Street Dundee so far as extending between Somerville Place on the south and a continuation eastwards of the north line of Adelaide Place on the north being part of the old Dundee and Newtyle Railway and extending to seventy-five poles or thereby as said area of ground is delineated and coloured red on the Plan No. 1 signed as relative hereto and (second) the area of ground extending to eighty-three poles and three fourth parts of a pole or thereby at Seabraes delineated and coloured blue on the Plan No. II signed as relative hereto which areas of ground shall be devoted to and used only for purposes of public improvement The Railway Company shall be entitled to an access from their remaining ground north of the area first above referred to to Adelaide Place or Drummond Street and they agree so far as they competently may that any right of way which they possess through the area of ground second above referred to shall be abandoned. A.D. 1915.

Third The Railway Company hereby consent to the Town Council if and when they may so resolve constructing a carriage bridge of a single span over the railway opposite and in the line of Windsor Street Dundee on the site marked "Proposed Bridge" on Plan No. III signed as relative hereto Said carriage bridge shall be in lieu of the footbridge provided for in Article Fourth of the agreement of nineteen hundred and one and on the completion thereof the obligations on the Town Council contained in said Article Fourth of the agreement of nineteen hundred and one in connection with said footbridge shall be cancelled Said carriage bridge shall be constructed and thereafter maintained to the satisfaction of the Railway Company by the Town Council all at their own cost and the plans specifications and working drawings thereof shall be first submitted for approval to the engineer-in-chief of the Railway Company The Town Council shall also pay as part of the cost of construction of said bridge the cost to the Railway Company of altering any works or apparatus so as to permit of such construction Further any extra expense which the Railway Company may incur in the maintenance repair renewal alteration or reconstruction of their railway or works by reason of the existence of the said carriage bridge shall be paid by the Town Council The Railway Company shall be entitled at their own cost to make accesses from the said bridge to their Magdalen Green Station.

Fourth The Town Council shall convey to the Railway Company without payment and free from all feuduties and casualties the area of ground under and adjoining Ninewells Bridge extending to sixteen poles or thereby coloured red on Plan No. IV executed as relative hereto and being part of the strip of ground first referred to in the First Article hereof.

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Fifth On the execution of this agreement the Railway Company shall pay to the Town Council the sum of two hundred and fifty pounds which sum shall be accepted as in full of all claims competent to the Town Council under or arising out of the agreement of nineteen hundred and one so far as not implemented or for expenses and each party shall bear their own expenses of and incidental to this agreement.

Sixth This agreement may be scheduled to any Provisional Order hereafter promoted by the Railway Company or Town Council and is subject to such alterations as the Secretary for Scotland or Parliament may make thereon Should any alteration be made on this agreement by the Secretary for Scotland or by Parliament which in the opinion of the Dean of Faculty of Advocates for the time being materially affects its provisions it shall be competent to either party to withdraw from the same.

In witness whereof these presents written on this and the three preceding pages by William Morton clerk to the said Caledonian Railway Company in their solicitor's office in Glasgow are along with the said plans hereto annexed executed in duplicate as follows (videlicet) They are subscribed for and on behalf of the said lord provost magistrates and councillors of the city and royal burgh of Dundee by Sir James Urquhart lord provost John Macarthur Soutar treasurer and William Henry Blyth Martin town clerk all of the said city and royal burgh of Dundee and as duly authorised all at Dundee on the first day of October one thousand nine hundred and fourteen before these witnesses James Morton Scott and James Norrie Campbell both clerks in the town clerk's office Dundee and the same are sealed with the common seal of the said Caledonian Railway Company and subscribed for and on behalf of the said Company by Henry Erskine Gordon and Henry Allan two of the directors and by John Blackburn secretary all of the said Company all at Glasgow on the twentieth day of October in the year last mentioned before these witnesses John Smeaton and John Richmond both clerks to the said Company in their secretary's office in Glasgow.

J. SMEATON Witness.

JNO. RICHMOND Witness.

J. M. SCOTT Witness.

JAMES N. CAMPBELL Witness.



H. E. GORDON Dr.

HENRY ALLAN Dr.

J. BLACKBURN Secy.

J. URQUHART.

JOHN M. SOUTAR.

WM. H. BLYTH MARTIN

Town Clerk.

[5 & 6 GEO. 5.] *Caledonian Railway Order Confirmation* [Ch. iv.]
Act, 1915.

THE THIRD SCHEDULE.

A.D. 1915.

MINUTE OF AGREEMENT between HIS MAJESTY'S PRINCIPAL SECRETARY OF STATE FOR THE WAR DEPARTMENT (hereinafter referred to as the "Secretary of State") of the first part and the CALEDONIAN RAILWAY COMPANY and the NORTH BRITISH RAILWAY COMPANY joint owners of the Dundee and Arbroath Joint Line pursuant to the North British Railway Dundee and Arbroath Joint Line Act eighteen hundred and seventy-nine (hereinafter referred to as "the Railway Companies") of the second part.

WHEREAS in the construction of the Dundee and Arbroath Railway in eighteen hundred and thirty-eight a private accommodation level crossing with wicket gates was made at Whitegates (at a point about seven hundred yards to the east of the railway bridge at the west end of South Street Monifieth) for the accommodation of the estates of William Lord Panmure whose property at that time lay on both sides of the railway And whereas part of the said property lying between the railway and the Firth of Tay has since been purchased by the Secretary of State for the purpose of a camping ground and other military purposes and the public have no rights therein And whereas it has been agreed between the parties that the said level crossing should be permanently closed and the wicket gates removed and that in consideration therefor the Railway Companies should pay to the Secretary of State the sum of fifty pounds Therefore these presents witness that the parties have agreed and do hereby agree and bind and oblige themselves as follows (videlicet):—

First The Secretary of State hereby consents to the immediate closing by the Railway Companies of the said private accommodation level crossing and to the removal of the wicket gates thereat and the Railway Companies shall forthwith at their own expense carry out the said operations.

Second In consideration of their being allowed to stop up the said level crossing and remove said wicket gates the Railway Companies shall forthwith pay to the Secretary of State the sum of fifty pounds sterling.

Third The Railway Companies shall in all time coming free relieve and indemnify the Secretary of State of from and against all claims and demands of any kind whatsoever and by whomsoever made in respect of the stopping up of said level crossing and the removal of said wicket gates.

Fourth This agreement may be scheduled to the first Provisional Order to be promoted by either of the Railway Companies and is subject to such alteration as the Secretary for Scotland or Parliament

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A.D. 1915. — may see fit to make thereon and in the event of any such alteration being made which in the opinion of the Right Honourable Baron Parmoor is material either of the parties shall be entitled to withdraw therefrom.

Fifth The expenses of this agreement shall be borne by the Railway Companies.

In witness whereof these presents written on this and the preceding page by William Morton clerk to the said Caledonian Railway Company in their solicitor's office in Glasgow are executed in duplicate as follows (videlicet) They are sealed with the common seal of the said Caledonian Railway Company and subscribed for them and on their behalf by Henry Erskine Gordon and William James Chrystal two of the directors and by John Blackburn the secretary all at Glasgow on the eleventh day of January nineteen hundred and fifteen before these witnesses John Smeaton and John Richmond both clerks to the said Caledonian Railway Company in their secretary's office in Glasgow They are sealed with the common seal of the said North British Railway Company and subscribed for them and on their behalf by Charles Carlow and Andrew Kirkwood McCosh two of the directors and by John Cathles the secretary all at Edinburgh on the fourteenth day of said month and in the year last mentioned before these witnesses Thomas Henry Short and John Paul both clerks to the said North British Railway Company in their secretary's office in Edinburgh And they are subscribed by the Right Honourable Horatio Herbert Earl Kitchener His Majesty's Principal Secretary of State for the War Department at London on the sixteenth day of February in the year last above mentioned before these witnesses Herbert James Creedy private secretary and Oswald Arthur Gerald Fitzgerald (who subscribes "O. Fitzgerald") personal military secretary both of the War Office London.

H. J. CREEDY Witness.

KITCHENER. .

O. FITZGERALD Witness.

J. SMEATON Witness.

JNO. RICHMOND Witness.

Seal of
the Caledonian
Railway
Company.

H. E. GORDON Dr.

WM. J. CHRYSTAL Dr.

J. BLACKBURN Secy.

THOS. H. SHORT Witness.

JNO. PAUL Witness.

Seal of the
North British
Railway
Company.

CHAS. CARLOW Director.

AND. K. McCOSH

Director.

J CATHLES Secy.

N.B. Ry. Co.

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Act, 1915.

THE FOURTH SCHEDULE.

A.D. 1915.

MINUTE of AGREEMENT between the CALEDONIAN RAILWAY COMPANY incorporated by the Caledonian Railway Act eighteen hundred and forty-five and having their principal office at three hundred and two Buchanan Street Glasgow (hereinafter referred to as "the Company") of the first part and the COUNTY COUNCIL OF THE COUNTY OF LANARK incorporated by law (hereinafter referred to as "the County Council") of the second part.

WHEREAS the County Council as road authority for the county of Lanark resolved at their statutory meeting held within the County Hall Hamilton on Thursday the tenth day of October nineteen hundred and twelve that (A) the portion of the highway in the parishes of Carnwath and Pettinain known as Lampits Road extending from Lampits Farm Roadend in the parish of Carnwath to the boundary of the parishes of Carnwath and Pettinain in the centre of the River Clyde at Lampits Ferry as shown coloured brown between the points marked A and B on the Ordnance map annexed and signed as relative hereto and (B) the portion of the Pettinain and Lanark Road in the parish of Pettinain extending from the boundary of the parishes of Carnwath and Pettinain in the centre of the River Clyde at Lampits Ferry aforesaid to Tie Road No. II. as shown coloured brown between the points B and C on said plan should cease to be highways within the meaning and for the purposes of the Roads and Bridges (Scotland) Act 1878 and should also in terms of section 43 of said Act be shut up And whereas in lieu thereof the County Council have resolved to construct a new road in the parishes of Carstairs and Pettinain from near Carstairs Junction to the point last mentioned as the line of said proposed road is shown coloured red and extending between the points marked D and C on said Ordnance map And whereas the shutting up of said portion of said Pettinain and Lanark Road between the points B and C on said map will be of advantage to the Company in enabling them to stop up the level crossing over their railway at Float Cottage between the points B and C on said map And whereas the new road is designed to be carried across the River Clyde on a bridge and in respect of the advantage arising to them from the stopping up of said level crossing the Company have agreed to contribute towards the cost of said bridge Therefore these presents witness that the parties have agreed and do hereby agree and bind and oblige themselves as follows (videlicet):—

First The County Council shall forthwith proceed with the construction of the said new road as shown coloured red between the

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A.D. 1915. — points D and C on said Ordnance map and of the said bridge to carry the same across the River Clyde The work shall be carried out with all reasonable despatch and the road and bridge shall be opened for public use thereafter without delay and thereupon the County Council shall shut up and close the said portions of said highways as shown coloured brown between the points A and B and B and C on said Ordnance map and the Company shall be entitled to stop up the said level crossing and the same shall cease to exist as a level crossing for any purpose.

Second So soon as said new road and bridge have been constructed and opened for public use and said portions of said highways have been shut up and closed the Company shall in respect of the advantage arising to them from the discontinuance of said level crossing pay to the County Council the sum of one thousand pounds as a contribution towards the cost of construction of said bridge.

Third The Company shall convey to the County Council the area of ground extending to eighty-two and one half square yards or thereby hatched green on the plan annexed and signed as relative hereto and the County Council shall acquire from Sir John King Baronet of Carstairs and convey to the Company an equivalent area of ground as the same is shown tinted pink on said plan.

Fourth Each party shall bear their own expenses incidental to the preparation of this agreement and the execution of the conveyances or other deeds necessary to carry out the purposes of the preceding article.

Fifth This agreement may be scheduled to any Provisional Order hereafter promoted by either of the parties and is subject to such alterations as the Secretary for Scotland or Parliament may make thereon Should any alteration be made on this agreement by the Secretary for Scotland or Parliament which in the opinion of Lord Parmoor is material thereto either of the parties may withdraw therefrom provided the other party shall not prior to the date of such alteration have implemented or be in course of implementing any obligation incumbent on them under this agreement.

In witness whereof these presents written on this and the two preceding pages by William Morton clerk to the said Caledonian Railway Company in their solicitor's office in Glasgow are executed by the parties hereto in duplicate as follows (videlicet) They are sealed with the common seal of the said County Council and subscribed by William Templeton and William Davie two of the members of the said County Council and by Sir Thomas Munro county clerk by authority of the said County Council at Glasgow on the third day of February nineteen hundred and fifteen before these witnesses Robert Bryce

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Walker solicitor and Archibald Angus Templeton clerk both of the County Offices Hamilton and they are sealed with the common seal of the said Caledonian Railway Company and subscribed for them and on their behalf by Henry Allan and Henry Erskine Gordon two of their directors and by John Blackburn their secretary all at Glasgow on the ninth day of the said month and year last mentioned before these witnesses John Smeaton and John Richmond both clerks to the said Caledonian Railway Company in their secretary's office in Glasgow. A.D. 1915.

J. SMEATON Witness.
JNO. RICHMOND Witness.



HENRY ALLAN Dr.
H. E. GORDON Dr.
J. BLACKBURN Secy.

ROBERT BRYCE WALKER
Witness.
ARCHD. A. TEMPLETON
Witness.



WM. TEMPLETON.
WM. DAVIE.
THOS. MUNRO
County Clerk.

THE FIFTH SCHEDULE.

MINUTE OF AGREEMENT between the CALEDONIAN RAILWAY COMPANY incorporated by the Caledonian Railway Act eighteen hundred and forty-five and having their principal office at three hundred and two Buchanan Street Glasgow (hereinafter called "the Company") of the first part and the PROVOST MAGISTRATES AND COUNCILLORS OF THE ROYAL BURGH OF MONTROSE (hereinafter called "the Town Council") of the second part.

WHEREBY it is agreed as follows (videlicet):—

First The Company shall improve the working of the gates at Dorward Road level crossing on their branch railway from Dubton to Montrose and shall erect a signal cabin there with the necessary signals and appliances for opening and closing the said gates.

Second The said gates shall be closed against the railway and open for the road between the hours of eleven post meridiem and four hours thirty minutes ante meridiem and also between the hours of four hours thirty minutes ante meridiem and eleven post meridiem so far as this can be done consistent with the safe and regular working of the traffic on the railway.

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Third In consideration of the carrying out by the Company of the works and arrangements hereinbefore set forth in the First and Second Articles hereof the Town Council shall free and relieve the Company in all time coming of the obligation undertaken by their predecessors the Aberdeen Railway Company under contract of agreement between the Town Council and the said Aberdeen Railway Company dated sixth and seventh and registered in the Books of Council and Session eleventh all days of June eighteen hundred and forty-nine to maintain a level crossing at Rosehill (otherwise designated the Links level crossing) If the Company so desire they may insert a provision in any Provisional Order for which they may apply to the effect that they are discharged of the obligation above referred to and in such event the Town Council shall not oppose such provision.

Fourth In lieu of said level crossing at Rosehill the Town Council may at their sole cost and expense erect a steel or wooden footbridge across the railway there said bridge shall be erected according to plans and designs which shall be approved by the Company's engineer-in-chief before the work of erection is commenced and it shall be maintained by the Town Council free of expense to the Company and to the satisfaction of said engineer in all time coming.

Lastly Each party shall bear their own expenses of and in relation to this agreement.

This agreement is made subject to such alterations as Parliament or the Secretary for Scotland may think fit to make therein but in the event of Parliament or the Secretary for Scotland making any alteration therein which in the opinion of the Right Honourable Baron Parmoor is material it shall be competent to either party to withdraw from the same.

In witness whereof these presents written on this and the preceding page by William Morton clerk to the said Caledonian Railway Company in their solicitor's office in Glasgow are executed by the parties hereto in duplicate as follows (videlicet) They are sealed with the common seal of the royal burgh of Montrose and subscribed by Alexander Thomson provost and by James Cumming town clerk all in presence and by authority of a meeting of the Town Council of the said royal burgh duly convened and held at Montrose on the ninth day of June nineteen hundred and fourteen before these witnesses David Smith town chamberlain Montrose and James Black Sutherland Fairweather clerk to the said James Cumming and they are sealed with the common seal of the said Caledonian Railway Company and subscribed for them and on their behalf by Henry Erskine Gordon and William James Chrystal two of their

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directors and by John Blackburn their secretary at Glasgow on A.D. 1915.
the fifteenth day of the said month and year last mentioned
before these witnesses John Smeaton and John Richmond both
clerks to the said Caledonian Railway Company in their
secretary's office in Glasgow.

J. SMEATON Witness.
JNO. RICHMOND Witness.

Seal of
the Caledonian
Railway
Company.

H. E. GORDON Dr.
WM. J. CHRYSTAL Dr.
J. BLACKBURN Secy.

DAVID SMITH Witness.
J. B. S. FAIRWEATHER
Witness.

Seal of the
Royal Burgh
of
Montrose.

ALEXR. THOMSON
Provost.
JAMES CUMMING
Town Clerk.

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